

বাংলাদেশ সুপ্রীমকোর্ট
হাইকোর্ট বিভাগ
আপীল সম্পর্কিত
ফৌজদারী

জেলা: Chattogram

ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনের রিভিশন
নং

মোহাম্মদ ইসমাইল	আবেদনকারী
মাধ্যম	Mr. Mohammad Rokun Uddin, Advocate
	বনাম

The State

Ms. Shiuli Khanom, D.A.G along with
Mr. S.M. Emamul Musfiqur, A.A.G
Mr. Md. Humayun Karim Siddique, A.A.G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দণ্ডাদেশ

Present

Mr. Justice Md. Khairul Alam

আপীল আদালত

তারিখ

২০

কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	19.11.2024	In preferring the Criminal Revision under section 439 read with section 435 of the Code of Criminal Procedure there had been a delay of 308 days for which the petitioner filed an application under section 5 of the Limitation Act. Considering the facts and circumstances, the delay of 308 days in filing the revision is hereby condoned. Let records be called for and realization of fine be stayed. Let a rule be issued calling upon the opposite parties to show cause as to why the judgment and order dated 12.11.2023 passed by the learned Additional Metropolitan Sessions Judge, 1st Court, Chattogram in Criminal Appeal No. 557 of 2023 dismissing the appeal and thereby affirming the judgment and order of conviction dated 09.05.2023 passed by the learned Chief Metropolitan Magistrate, Chattogram in G.R. Case No. 18 of 2015 arising out of Patenga Police Station Case No. 18 dated 23.01.2015 convicting the convict petitioner under section 324 of the Penal Code, 1860 and sentencing him to suffer rigorous simple imprisonment for 01 (one) year and 06 (six) months should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.	

নোট বা আদেশের ক্রমিক নং	তারিখ	নোট ও আদেশ
		Pending disposal of the rule, let the convict petitioner Mohammad Ismail, son of late Nur Miah be enlarged on ad-interim bail for a period of 01 (one) year on furnishing bail bond to the satisfaction of the learned Chief Metropolitan Magistrate, Chattogram. The rule is made returnable within 4 (four) weeks from date. The petitioner shall put in 2 (two) sets of requisites within 7 days, for service of notice of the rule upon the opposite party in normal course as well as by registered post with A/D as per HCD Rules. Office shall not issue any certified copy or other copy of this order to the petitioner unless requisites are put in vide HCD Rules, Chapter IV Rule 3(6).
		Kashem/B.o